

Court No. - 4

Case :- WRIT - C No. - 5078 of 2020

Petitioner :- Ramesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rateesh Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Bala Krishna Narayana,J.

Hon'ble Shamim Ahmed,J.

Learned counsel for the petitioner is permitted to correct the description of the parties.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

This writ petition has been filed, inter alia, for the following reliefs :-

"(i) Issue a writ, order or direction in the nature of certiorari quashing the incorrect demand notice dated 25.07.2019 as well as electric bill dated 07.12.2019 (Annexure No. 4 to this writ petition).

(ii) A writ, order or direction in the nature of mandamus commanding the respondents authorities to correct the respondents authorities to correct the electric bill of the petitioner by adjusting the surplus amount paid by the petitioner upto 2014.

(iii) Any other order or direction, which this Hon'ble Court may deems fit and proper under the facts and circumstance of the case.

(iv) Award the cost of the petition."

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days or till the matter is decided by the authority concerned, whichever is earlier, no coercive action

shall be taken against the petitioner in pursuance of the incorrect demand notice dated 25.7.2019.

It is made clear that in case the petitioner does not approaches the authority concerned within the stipulated period, as indicated herein above, the benefit given to the petitioner under this order shall cease to operate.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 13.2.2020

Ishan